

Wheat (Stock Declaration By Companies Or Firms Or Individuals) Order, 2008

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Union of India - Act

Wheat (Stock Declaration By Companies Or Firms Or Individuals) Order, 2008

UNION OF INDIA

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Wheat (Stock Declaration By Companies Or Firms Or Individuals) Order, 2008

Rule WHEAT-STOCK-DECLARATION-BY-COMPANIES-OR-FIRMS-OR-INDIVIDUALS-ORDER-2008 of 2008

Published on 4 February 2008

Commenced on 4 February 2008

[This is the version of this document from 4 February 2008.]

[Note: The original publication document is not available and this content could not be verified.]

Wheat (Stock Declaration By Companies Or Firms Or Individuals) Order, 2008

Published vide Notification Gazette of India, Extra; Part 2, Section 3(ii), dated 4.2.2008

1620.

No. S.O. 288 (E), dated February 11, 2008.- In exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955 (

10 of 1955

), the Central Government hereby makes the following Order, namely:

1.

Short title, extent, commencement and application.-

(1)

This Order may be called the Wheat (Stock Declaration by Companies or Firms or Individuals) Order, 2008.

(2)

It extends to the whole of India.

(3)

It shall come into force on the date of its publication in the Official Gazette.

(4)

It shall not apply to any wheat purchased by or on behalf of the Food Corporation of India.

2.

Definitions.-

In this Order, unless the context otherwise requires,

(a)

"Food Corporation of India" means the Food Corporation of India established under Section 3 of the Food Corporation of India Act, 1964 (

37 of 1964

);

(b)

"Form" means for form annexed to this Order.

(c)

"Wheat" means dried mature grains of *Triticum vulgare*, *T compactum*, *T sphaerococcum*, *T durum*, *T aestivum* and *T dicoccum*.

(d)

"Company" means a company notified under the Companies Act, 1956 (10 of 1956).

3.

Return relating to purchase of wheat by a Company or Firm or Individual.-

(1)

Any Company or Firm or Individual who purchases wheat in excess of 10,000 Metric Tonnes (total purchases made throughout the country) during the Rabi Marketing Season 2008-09 (April-March), shall furnish to the Secretary, Department of Food of the State from where maximum quantity has been purchased, a return in the Form at such intervals as may be specified by the Central Government.

(2)

In case the purchase of wheat exceeds 25,000 Metric Tonnes (total purchases made throughout the country), the return in the Form at such intervals specified therein shall be furnished to the Under Secretary (Policy-III), Department of Food and Public Distribution, Room No.292, Krishi Bhavan, New Delhi 110 001 (Fax No.011-23782213, e-mail: uspy 34.fpd@nic. in)

(3)

The concerned State Governments with which the returns are filed by any Company or Firm or Individual in Form declaring purchase of wheat in excess of 10,000 Metric Tonnes shall submit a consolidated monthly report to the Under Secretary (Py-HD, Department of Food and Public Distribution by the 10th of every month.

FORM

(See clause 3)

Format For Furnishing Of Monthly Return By Company Or Firm Or Individual Regarding Purchase Of Wheat Statement as on.....

To be submitted every week by Friday 16-00 hrs. during the period 1st April, 30th June, 2008 and every last day of the month thereafter till 31-3-2009.

1. Name of Company or Firm or Individual with full postal address.

2. PAN Number

3. Cumulative quantity of wheat purchased (in tonnes) upto.....

4.

Details of Purchases (other than farmers) during the month.

Name and address of Firm/Company from whom purchased

Quantity purchased in tonnes

5.

Details of CESS/Taxes paid.

6.

Details of stock on date:

State

Location and address of godown

Quantity in tonnes

Place:

Date:

e-mail uspy34.fpd@nic.in, Fax No. 011-23782213 of the above to Under Secretary (Policy-III), Department of Food and Public Distribution, Room No.292, Krishi Bhavan, New Delhi-110001.

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